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AS AMENDED

By: Boles, Gise, Archer,
Pogemiller, Waldron, and
Deck of the House

and

Pugh and Mann of the Senate

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1 year and have worked at least one thousand two hundred fifty (1,250)
2 hours during the preceding twelve-month period;

3 3. Persons employed as teachers by the State Department of
4 Rehabilitation Services who have been employed by the State
5 Department of Rehabilitation Services for at least one year and have
6 worked at least one thousand two hundred fifty (1,250) hours during
7 the preceding twelve-month period;

8 4. Persons employed full time as correctional teachers or
9 vocational instructors by the Department of Corrections pursuant to
10 Section 510.6a of Title 57 of the Oklahoma Statutes who have been
11 employed by a Department of Corrections facility for at least one
12 year and have worked at least one thousand two hundred fifty (1,250)
13 hours during the preceding twelve-month period; and

14 5. Persons employed full time as teachers by the Office of
15 Juvenile Affairs who have been employed by an Office of Juvenile
16 Affairs facility for at least one year and have worked at least one
17 thousand two hundred fifty (1,250) hours during the preceding
18 twelve-month period,
19 shall be entitled to six (6) weeks of paid maternity leave following
20 the birth or adoption of the employee's child, provided that the
21 child is under four (4) years of age. The six (6) weeks of paid
22 maternity leave shall be used immediately following the birth or
23 adoption of the school district employee's child.

1 B. 1. Paid maternity leave provided pursuant to paragraphs 1,
2 2, and 3 of subsection A of this section shall be in addition to and
3 not in place of sick leave due to pregnancy, as authorized by
4 Section 6-104 of this title.

5 2. Paid maternity leave provided pursuant to paragraph 4 of
6 subsection A of this section shall be in addition to and not in
7 place of sick leave due to pregnancy, as authorized by Section
8 510.6a of Title 57 of the Oklahoma Statutes.

9 3. Paid maternity leave provided pursuant to paragraph 5 of
10 subsection A of this section shall be in addition to and not in
11 place of sick leave due to pregnancy, as authorized by Section 2-7-
12 202 of Title 10A of the Oklahoma Statutes.

13 C. 1. Employees described in subsection A of this section
14 shall have the right to utilize accrued sick leave to extend the
15 duration of their maternity leave beyond the six (6) weeks provided
16 by this section. Such sick leave may be used for recovery from
17 childbirth, bonding with a newborn or infant, or caring for a
18 newborn or infant, and shall not require additional approval from a
19 school board or employer, provided the employee has sufficient sick
20 leave to cover the extended duration. Sick leave used pursuant to
21 this subsection shall not exceed six (6) weeks, unless a licensed
22 medical professional provides written certification recommending
23 additional leave for medical necessity related to the employee's
24 recovery from child birth, or for the care of the newborn, to

1 achieve a combined twelve (12) weeks of FMLA leave in accordance
2 with paragraph 2 of this subsection.

3 2. An employee seeking to use sick leave to extend the duration
4 of their maternity leave shall notify their employer in accordance
5 with the Family and Medical Leave Act of 1993 (FMLA). FMLA leave
6 shall run concurrently with the paid sick leave extended duration.

7 D. An employee who takes maternity leave pursuant to the
8 provisions of subsection A of this section shall not be deprived of
9 any compensation or other benefits to which the employee is
10 otherwise entitled.

11 E. Each fiscal year, the Legislature shall appropriate adequate
12 funding to the Public School Paid Maternity Leave Revolving Fund
13 created in Section 6-104.9 of this title for the purpose of
14 providing paid maternity leave to eligible school district employees
15 pursuant to paragraph 1 of subsection A of this section. If the
16 Legislature does not appropriate adequate funding specifically for
17 the purpose of providing paid maternity leave to school district
18 employees, the State Board of Education shall allocate from the
19 funds appropriated to the State Board of Education for the support
20 of public school activities an amount to fully fund paid maternity
21 leave.

22 F. The State Board of Education, the State Board of Career and
23 Technology Education, the Commission for Rehabilitation Services,
24

1 the State Board of Corrections, and the Board of Juvenile Affairs
2 may promulgate rules to implement the provisions of this section.

3 SECTION 2. This act shall become effective November 1, 2026.

4 COMMITTEE REPORT BY: COMMITTEE ON EDUCATION
5 April 7, 2026 - DO PASS AS AMENDED
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